From	Robert Samuel White
To	David Pitcher
Cc	Benjamin Gutman; OPRD Commissioners; Governor Kotek; [DOJ Legal Secretary], DOJ; Todd Albert
Date	October 16, 2026, 2:54 PM PT
Subject	**Public Records Counsel**
Attached	2026-10-16-david-pitcher.pdf
Document	01M53BC0W0KQVDK57PD0WJ29EC

Mr. Pitcher,

I have read everything you have put your name to in my matter, and the one thing you did not.

Your title is Public Records Counsel. The man who holds it is trusted to tell Oregon the truth about its records law, to apply that law to his own department as he would to any other, and to put his name to what he decides. You were a criminal prosecutor for eleven years and handled the Washington County District Attorney's public records for five. You were introduced to the Oregon Sunshine Committee as the Department of Justice's counsel on records. At the Attorney General's Public Law Conference, you are the one at the front of the room teaching Oregon's public bodies how to answer a records request.

Those three trusts are the whole of the role.

You were trusted to tell Oregon the truth about its records law. On October 15, 2026, you told it that the file your department keeps on a citizen's letters to his government is his private interest.

You were trusted to apply that law to your own department as you would to any other. You answered for the Attorney General's orders on a citizen's petitions against other agencies, and then priced your own department's file on him at $599.

You were trusted to put your name to what you decide. Your explanations carry your name, with no title beneath it. Your denial of my fee waiver on October 15, 2026 carries no name at all. The orders went out over another man's signature, with the initials "DEP:pjn" at the foot. The more a document decides, the less of you is on it.

The archive of this matter keeps a page for every official who acted in it, with two lines beside each name: the role the title promises, and the function the record shows. Yours is there, and the second line reads: "Guards his department's file on the volunteer from both sides of the records law."

If either line is wrong, you are the one person in this matter who can correct it, in a letter you sign.

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